

Late Shri Baldev Raj Madan vs Civ Dj No.608161/16 Sh. Baldev Raj Madan ... on 17 February, 2018

IN THE COURT OF MS. MANJUSHA WADHWA
ADJ - 04 (WEST), TIS HAZARI COURTS, DELHI

Civ Dj No. 608161/16

1. Late Shri Baldev Raj Madan
S/o Late Shri Harnam Dass
Through LR's : -

A) Mamta Nagpal
D/o Late Shri Baldev Raj Madan
W/o Mr. Rajeshwar Nagpal
R/o BP-30, 1st Floor, Shalimar Bagh,
New Delhi- 110088.

B) Baruna Madan
D/o Late Shri Baldev Raj Madan
W/o Mr. Mehresh Lalit,
Prime Infotech, A-38/1, Mayapuri Industrial Area,
Phase-I, New Delhi.

C) Manika Madan
D/o Late Shri Baldev Raj Madan
W/o Mr. M.M. Boppana,
AIR Force Station,
Halwara, Ludhiana, Punjab

Also at :

Through Ms. Baruna Madan,
A-38/1, Mayapuri Industrial Area,
Phase-I, New Delhi.

Versus

Civ DJ No.608161/16
1. Late Smt. Champa Wati Madan
W/o Late Shri Des Raj Madan
(Deleted from array of parties vide order dated 01.02.2007)

Sh. Baldev Raj Madan through LR's vs. Smt. Ch

2. Raj Rani
D/o Late Shri Kahn Chand
R/o 7/81, Punjabi Bagh(West), New Delhi-110026.

3. Lovleen
W/o Shri Onkar Nath Kharbanda
R/o 7/81, Punjabi Bagh (West), New Delhi-110026.

4. Shri Tilak Raj Madan

S/o Late Shri Harnam Dass through LR's : -

A) Mr. Manish Madan

S/o Late Shri Tilak Raj Madan

R/o 16/374, Gali No.12, Joshi Road,
Karol Bagh, New Delhi-110005.

B) Ms. Ritu Baweja

D/o Late Shri Tilak Raj Madan

W/o Mr. Anil Baweja,

R/o C/o Mr. Manish Madan

16/374, Gali No.12, Joshi Road,

Karol Bagh, New Delhi-110005.

(Local Address) As Her United States of
America (USA) address is not available

5. Shri Mulkh Raj Madan

S/o Late Shri Harnam Dass

R/o 15, Friends Colony, R.P.T.S. Road,

Pratap Nagar,

Nagpur -22 (Maharashtra)

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Sh. Baldev Raj Madan through LR's vs. Smt. Ch

6. Smt. Raj Rani Nagpal through LR's

A) Ms. Kiran Dev Raj

D/o Smt. Raj Rani Nagpal

R/o JP-63, Ground Floor, Pitam Pura, New Delhi.

B) Ms. Manju Khanna

D/o Smt. Raj Rani Nagpal

R/o JP-63, First Floor, Pitam Pura, New Delhi.

C) Ms. Anita Bhatia, D/o Smt. Raj Rani Nagpal,

R/o JP-63, Second Floor, Pitam Pura, New Delhi.

D) Ms. Vinti Vij

D/o Smt. Raj Rani Nagpal

W/o Mr. Sarvit Vij

R/o 16, West Patel Nagar, Near on the Rocks

Restaurant, Circuit House Road

Jodhpur (Rajasthan)-342001.

Date of Filing Suit

: 05.10.

Date of Transfer to this Court

: 11.04.

Date of Reserving Judgment

: 20.01.

Date of Judgment

: 17.02.

J U D G M E N T

1. This is suit for partition and possession filed by the plaintiff against the defendants.

2. Succinctly put, brief facts of the case are that Late Shri Des Raj S/o late Harnam Dass was owner in possession of 1/2 share in house

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3. The plaintiff further pleaded that he is in actual physical possession

of the second floor of the suit property no. 1 since 1976 as he was inducted as a tenant by the defendant no.1 and at present, rate of rent is Rs.130/- per month whereas defendant no.1 & 2 are in possession of the first floor of the suit property no. 1. It is averred that there are shops on the ground floor of the suit property no.1 and are in possession of different tenants and basement in the property no. 1 is also in the possession of a tenant.

4. The plaintiff also claimed to be in possession of suit property no.2 since 1961 where he was inducted as a tenant by Sh. Des Raj himself and rate of rent is Rs.130/- per month.

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5. It is also pleaded by the plaintiff that Shri Des Raj was real brother of the plaintiff who expired on 30.12.1975 at Delhi leaving behind his wife, Smt. Champa Wati and his mother, Smt. Chanan Devi. It is averred that on the death of Sh. Des Raj, his mother Smt. Chanan Devi was alive and all rights of Sh. Des Raj in the suit properties were inherited by his mother, Smt Chanan Devi and wife, S Champawati in equal share being his legal heirs.

6. The plaintiff further pleaded that Smt. Champa Wati (defendant no.1) is the legally wedded wife of Sh. Des Raj whereas, Smt. Raj Rani (defendant no.2) alleges herself to be wife of the late Sh. Des

Raj but she could not inherit any portion of property from the estate of Sh. Des Raj and similarly Smt. Lovleen (defendant no.3 herein) could not inherit property left by Sh. Des Raj at the time of his death on 30.12.1975. According to the plaintiff, Smt Champa Wati (defendant no.1) and Smt. Chanan Devi (mother of late Sh. Des Raj) could only inherit the estate of Sh. Des Raj in equal share.

7. It is further pleaded by the plaintiff that Smt. Chanan Devi also expired on 10.07.1984 leaving behind plaintiff as well as defendant no. 4 to 6 as her legal heirs who are entitled to 1/4th share each in the estate of Smt. Chanan Devi. It is averred that the became entitled to 1/4th share of estate of Smt. Chanan Devi and in this way, has become owner to the extent of 1/16th share in suit property no.1 and the defendant nos. 4 to 6 are also owner to the

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extent of 3/16th share in the suit property no.1. Further, the plaintiff became entitled to 1/8th share in the suit property no. 2 remaining 3/8th share has devolved upon the defendant nos. 4 to 6.

8. The plaintiff further pleaded that the defendant nos.1 to 3 started unwanted litigation against the plaintiff and in order to lead peaceful life, the defendants were requested to amicably partition the suit properties by metes and bounds, however, the defendants remained reluctant to the request of the plaintiff, hence, the present suit.
9. Written statement was filed on behalf of the defendant no.2 and 3 as per which, the case of the defendant nos. 2 & 3 is that the properties were self acquired properties of Late Sh. Des Raj Madan, who was husband of defendant nos. 1 & 2 and father of defendant no.3 and as such, the plaintiff has no locus-standi to file the present suit. It is also pleaded that the defendant already expired on 17.02.2006 leaving behind a registered Will dated 12.02.1996 bequeathing the property belonging to her.
10. On merits, the defendants admitted Sh. Des Raj Madan(now deceased) as owner of the suit properties and pleaded that plaintiff has been in unauthorized occupation of second floor of the suit property no.1. The defendants further pleaded that Sh. Des Raj had executed registered Will dated 25.04.1975 in favour of Smt.

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Champa Wati and Smt. Raj Rani, both wives of Late Sh. Des Raj and in favour of defendant no.3, daughter of Late Sh. Des Raj. It is further pleaded that Hon'ble High Court of Delhi in SA No. 116 of 1974 titled as M/s World Science News vs. Lekh Raj & ors already declared Smt. Champa Wati and, Smt. Raj Rani and defendant no.3 as the only legal heirs of Sh. Des Raj Madan vide its order dated 25.03.1977 on the affidavit and statement of Smt Chanan Devi, mother of Sh. Des Raj, who stated that Sh. Des Raj

Madan had executed a Will on 25.04.1975 bequeathing his right, title and interest in his properties in equal share in favour of his two widows namely, Smt. Champa Wati and Smt. Raj Rani as well as his only daughter, namely Ms. Lovleen.

11. According to the defendants no. 2 and 3/contesting defendants, Smt. Chanan Devi had never inherited the alleged 1/2 share of late Sh. Des Raj Madan as he had already bequeathed his entire estate vide Will dated 25.04.1975 and the said fact was ratified by Smt. Chanan Devi as well as the plaintiff in S.A. No. 116/74. The defendants denied the claim of the plaintiff in the suit properties and prayed for dismissal of the present suit.
12. Written statement was also filed on behalf of the defendant no.4 wherein he pleaded that the suit properties belongs to the defendant nos. 1 to 3 who are the absolute owner of the suit properties. He further pleaded that the defendant no. 1 has already passed away and

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her property has also come under the ownership of the defendant no.2 by way of registered Will dated 04.05.1998. According to the defendant no.4, the defendant nos. 2 & 3 have become absolute owner of the suit properties after the demise of the defendant no.1 and he stated that neither he has nor would he claim any right and title in the suit properties. He pleaded that he has been impleaded as party to the instant suit. He also pleaded that his mother of the answering defendant had already given no objection about the suit properties before the Hon'ble High Court of Delhi in S.A. No. 116/74 and the Hon'ble High Court of Delhi has already declared the defendant nos. 1 to 3 being the only legal heirs of Sh. Des Raj Madan, as such, the plaintiff has no right and title in the suit properties.

13. Written statement was also filed on behalf of the defendant nos.5 wherein, the defendant no.5 simply stated that he has no objection for the claim of the plaintiff as prayed in the suit.
14. Written statement was also filed on behalf of the defendant no.6 wherein it is pleaded that the suit properties belongs to the defendant no.1 to 3. He further pleaded that the defendant no.1 has already passed away and her property has also gone under the ownership of the defendant no.2 by way of registered Will dated 04.05.1998. He stated that the plaintiff has no right, title or interest in the suit properties as the defendant nos. 2 & 3 have become absolute owner

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of the suit properties after the demise of the defendant no.1, he further pleaded that he shall not claim any right, title or interest in the suit properties and has been wrongly impleaded as party in the instant suit. He also admitted that his mother has given

affidavit/no objection before the Hon'ble High Court of Delhi in S.A. No. 116/74 and the the Hon'ble High Court of Delhi has already declared the defendant nos. 1 to 3 as the only legal heir of Late Sh.Des Raj.

15. Replication was filed to joint written statement of defendant nos. 2 & 3 as well as to the written statement of the defendant nos. 4 to 6 wherein, the plaintiff has reiterated the contents of the plaint as true and correct and denied the contrary averments of the written statement.

16. Vide order dated 09.05.2007, following issues were framed by the learned Predecessor of this court which are reproduced as under : -

1. Whether the plaintiff has locus-standi for file the present suit because of existence of the Will dated 12.02.1996? OPD 2 & 3.
2. Whether the suit has been valued properly for the purpose of Court fee and jurisdiction? OPP
3. Whether the plaintiff is entitled for decree of possession prayed in Paragraph 18 of the plaint? OPP
4. Whether the plaintiff is entitled for decree of possession, as

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prayed in Paragraph 18 of the plaint ? OPP
5 . Relief.

17. Perusal of record shows that the defendant no.1, Smt. Champa Wati died issueless on 17.02.2006 and learned Predecessor of this court on the application under Order XXII Rule 2 read with Section 151 CPC deleted the name of Smt. Champa Wati from the array of defendants on the ground that her LRs are already on record. It has also been observed that whether Section 15 of the Hindu Succession Act, 1956 is applicable or whether the parties derive their right therefrom is a triable issue and is a matter of adjudication.

18. The issue wise finding is given in the succeeding paragraphs.

Issue No.2: Whether the suit has been valued properly for the purpose of Court fee and jurisdiction ? OPP

19. The onus to prove this issue was on the plaintiff. Ld. Counsel for the plaintiff submitted that the plaintiff has rightly valued the suit for the purpose of court fees and jurisdiction at Rs.18 lacs. He further submitted that the defendant no.3 during his cross examination admitted that in the year 1999, the value of the suit property was Rs.4 lacs.

20. In response to the same, ld. counsel for the defendant nos. 2 and 3 submitted that the value of the suit properties was more than Rs.4

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crores. It is submitted that no evidence was led by the plaintiff to establish that the suit properties has been rightly valued amount of Rs.18 lacs and thus, this court has no pecuni jurisdiction to try the present suit.

21. Onus to prove this issue was on the plaintiff. The plaintiff has stated in para 18 of the plaint that the value of the suit properties for the purpose of jurisdiction is fixed at Rs.18 lacs which was denied by the defendant no.2 & 3 in the written statement.
22. PW-1 deposed during his cross examination dated 26.10.2009 that he has no idea about the exact valuation of shop in Karol Bagh. He denied the suggestion that value of the suit property is around 4 crore approximately. On the other side, DW-2, Ms. Lovleen has admitted during her cross-examination dated 08.08.2017 that she had valued the suit property for Rs.4 lacs in the suit for eviction filed against Sh. Baldev Raj Madan and deposed that the same is as per the market value. She further admitted the suggestion that the suit property no. 2 is small in area as compared to the total area of the suit property no.1. However, she denied knowledge that the value of the property no.2 is less than the valuation of the suit property no.1.
23. It is pertinent to note that DW-2 has not denied the suggestion that she herself had valued the suit property no.1 for Rs.4 lac in suit for eviction filed against Sh. Baldev Raj Madan. Further, nothing has

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been placed on record to indicate that the value of suit properties is more than Rs. 4 crores. In the absence of any cogent documentary and/or oral evidence on record, it is not established that the value of the suit properties is more than the value as stated in the plaint, as such, this issue is decided in favour of the plaintiff and against the defendants.

Issue no. 1: Whether the plaintiff has locus-standi for file the present suit because of existence of the Will dated 12.02.1996 OPD 2 & 3.

24. Onus to prove this issue was on the defendant nos. 2 and 3. The issue no.1 deals with the locus standi of the plaintiff for filing the present suit because of the existence of the Will dated 12.02.1996. In this regard, suffice is to state that Will dated 12.02.1996 has been de-exhibited due to non deposit of cost of Rs. 5,000/- by the contesting defendants. Relevant portion of order dated 04.06.2013 is reproduced as : -
" ... Perusal of the record shows that defendant no.3 deposited the cost of Rs.5,000/- imposed on 10.01.2013 vide which the application u/0 8 Rule 1A CPC of the defendant no.3 for placing the document on record was allowed. Since the said order was conditional and the order has n complied with, the order dated 10.01.2013 is recalled and the

Will dated 12.02.1996 is taken off the record..."

25. Be that as it may, onus was on the contesting defendants/defendant

nos. 2 and 3 to prove that the plaintiff has no locus standi to file the present suit because of the existence of Will dated 12.02.1996. The

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defendant nos. 2 and 3 had filed the Will dated 12.02.1996, but, the same was taken off the record. The defendant nos. 2 & 3 had also filed an application under Order 14 Rule 5 CPC for deleting this issue framed vide order dated 09.05.2007 as irrelevant for adjudication of present partition suit qua estate of Smt. Chanan Devi. The said application has been dismissed by way of separate order passed today. Pertinently, the filing of said application by contesting defendants to delete this issue manifests that contesting defendants are not pressing this issue. Issue is decided accordingly. Hence, it is held that the plaintiff has locus to file the present suit.

Issue No. 3: Whether the plaintiff is entitled for decree of partition, as prayed in Paragraph 18 of the plaint? OPP

AND

Issue No. 4 : Whether the plaintiff is entitled for decree of possession, as prayed in Paragraph 18 of the plaint ? OPP

26. The onus to prove the aforesaid issues was on the plaintiff. Ld.

Counsel for the plaintiff submitted that the plaintiff along with the defendant nos.4 to 6 is one of the Class-II legal heir of late Sh. Des Raj, husband of the defendant no.1. He further submitted that Smt. Champa Wati was the only legally wedded wife of Sh. Des Raj and they died issueless. He further stated that the defendant no.2 & 3 have not denied that Smt. Champa Wati was the only legally wedded wife of Sh. Des Raj. It is his contention that no marriage had taken

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place between Sh. Des Raj and the defendant no.2 and the defendant nos. 2 & 3 have failed to discharge the burden that Sh Des Raj and the defendant no.2 were got married and the defendant no.3 is born out of the said wedlock. It is further submitted that in the absence of proof of any marriage between Sh. Des Raj and the defendant no.2; the defendant no. 3 is precluded by Section 16 (1) and Section 16 (3) of Hindu Marriage Act, 1956 to claim any share from Sh. Des Raj, Smt. Chanan Devi and Smt. Champa Wati Madan. It is his contention that the defendant nos. 2 and 3 are relying on Will dated 24.04.1975, Ex.DW1/5 which is inadmissible and not proved as per law. He contended that the original Will dated 24.04.1975, Ex.DW1/5 has neither been produced by the defendants before this Court nor before any other Court of law. He submitted that the Will, Ex.DW1/5 is a copy of copy of Will and is not even se

evidence under Section 63 of Indian Evidence Act. He submitted that deceased plaintiff never recognized any signature on Will Ex.DW1/5 (also Ex.PW1/D1) during his cross-examination and took a specific plea in replication that the Will was never executed by his late brother. It is his contention that the plaintiff during his cross-examination on being confronted with the Will for the first time has denied his signature and termed it as a forged Will prepared after the death of his late brother. He submitted that the defendant nos. 2 & 3 in order to prove a Will dated 25.04.1975, Ex.DW1/5 are relying on statement, reply and affidavit of Smt. Chanan Devi and order which was given in SAO No. 116/74 vide Ex.DW1/2, Ex.DW1/4

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27. Ld. counsel for the plaintiff further contended that Sh. Des Raj was survived by his mother, Smt. Chanan Devi and Smt. Champa Wati as Class-1 legal heirs and the second line of succession opened at the time of death of Smt. Chanan Devi on 10.07.1984 as at that time,

Civ DJ No.608161/16 Sh. Baldev Raj Madan through LRs vs. Smt. Chanan Devi and Smt. Chanan Devi was entitled to 1/4th share in the suit property no.1 and $\frac{1}{2}$ share in the suit property no.2. He has placed reliance on the following judgments as:-

- a) Harjas Rai Makhija (D) through LRs vs. Pushparani Jain & Anr, 2017 (1) SCR 1.
- b) V.M. Mathew vs. V.S. Sharma & ors, 1996 AIR 109.
- c) Sashi Jena & ors. vs. Khadal Swain & anr., 2004 AIR 1492.
- d) Tehsildar Singh & anr. vs. State of U.P., 1959 AIR 1012.
- e) Asia Pacific Breweries vs. Superior Industries decided on 06.03.2009 by Hon'ble High Court of Delhi in IA No. 5990/2007 in CS (OS) 946/2002.

28. In response to the same, ld. Counsel for the defendant nos. 2 & 3

submitted that the present suit is barred by law of limitation as Smt. Chanan Devi died on 10.07.1984 and the suit filed after more than 20 years i.e. in the year 2005 is not maintainable. She submitted that the plaintiff claimed partition of the estate of Smt. Chanan Devi whereas she was one of the witness to the Will dated 25.04.1975, Ex.DW1/5 and admitted that her deceased son had executed the said Will dated 25.04.1975, Ex.DW1/5, therefore, acknowledged Smt. Champawati, Ms. Raj Rani and Ms. Lovleen as beneficiary of the Will dated 25.04.1975, Ex.DW1/5 executed by Sh. Des Raj. It is her contention that Smt. Chanan Devi had affidavit on oath before the Hon'ble High Court of Delhi and also placed copy of the said Will dated 25.04.1975, Ex.DW1/5 in SAO No. 116/74 and had also given statement dated 25.03.1977 before the Hon'ble High Court of Delhi in SAO No. 116/1974 to the effect

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29. Ld. Counsel for the contesting defendants further submitted that the plaintiff admitted during cross examination that he had knowledge of the said case i.e. SAO No. 116/1974 and Smt. Chanan Devi had never claimed any right and interest in the suit properties during her lifetime. She further submitted that the argument of the plaintiff that Ex DW-1/1 to Ex DW-1/9 and statement of Smt Chanan Devi is not admissible by virtue of Section 33 of Indian Evidence Act is misplaced as Smt. Chanan Devi had not given statement and affidavit under any trial but rather in regular court proceedings where question of impleadment of Lrs of late Sh. Des Raj Madan was in question. She submitted that as per Section 32 of Indian Evidence Act, any statement qua existence of any relationship made in any Will etc given by a person who is dead or cannot be found is relevant and admissible. It is her contention that the affidavit and statement on oath given by Smt. Chanan Devi, being witness to the said Will dated 25.04.1975, Ex DW-1/5, in SAO No. 116/74 before the Hon'ble High Court of Delhi qua existence of said Will during regular court proceedings against her own interest is admissible.

30. Heard ld. Counsels for the parties and perused the record.

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31. The issue which arises for consideration is whether Will dated 25.04.1975; Ex-DW1/5 has been proved in the facts of the instant case. It is matter of record that the contesting defendants' no. 2 & 3 have not examined any attesting witness to the Will in the instant

case. Defendants no. 2 & 3 have relied upon the statement dated 25.03.1977 of Smt. Chanan Devi recorded in SAO No. 116/1974 before the Hon'ble High Court of Delhi. According to the contesting defendants, Smt. Chanan Devi herself stated before Hon'ble High Court of Delhi that late Sh. Des Raj Madan had executed a Will in favour of his two wives and one minor daughter, therefore, Will has been duly proved on record.

32. Now, the question which is relevant for consideration is whether the statement of Smt. Chanan Devi given before the Hon'ble High Court of Delhi can be considered in the instant case. As per settled law, in order to show that the Will has been validly executed and is genuine document, the propounder of a Will has to show the following as:-

- i) that the Will was signed by the testator and that he had put his signatures to the testament of his own free will;
- ii) that he was at the relevant time in a sound disposing state of mind and understood the nature and effect of the dispositions and
- iii) that the testator had signed it in presence of the two witnesses who attested it in his presence and in the presence of each other.

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33. The contesting defendants in the instant case were required to prove the due execution of Will and attestation by two witnesses required U/s 63(c) of the Indian Succession Act. Section 63(c) of the Indian Succession Act is reproduced hereunder as:-

63. Execution of unprivileged Wills. --Every testator, not being a soldier employed in an expedition or engaged in actual warfare, [or an airman so employed or engaged,] or a mariner at sea, shall execute his Will according to the following rules:--

(c) The Will shall be attested by two or more witnesses, each of whom has seen the testator sign or affix his mark to the Will or has seen some other person sign the Will, in the presence and by the direction of the testator, or has received from the testator a personal acknowledgement of his signature or mark, or the signature of such other person; and each of the witnesses shall sign the Will in the presence of the testator, but it shall not be necessary that more than one witness be present at the same time, and no particular form of attestation shall be necessary.

34. In order to prove a Will, one has to show that the Will has satisfied the requirement of Section 63(c) of the Indian Succession Act, 1925 apart from the one under Section 68 of Indian Evidence Act. Atleast, one attesting witness examined should be in a position to

prove the execution of a will in terms of clause (c) of Section 63, viz., attestation by two attesting witnesses in the manner contemplated therein, then, the examination of other attesting witness can be dispensed with. The one attesting witness examined, in his evidence has to satisfy the attestation of a Will by him and the other attesting witness in order to prove due execution of the Will. If

Civ DJ No.608161/16 Sh. Baldev Raj Madan through LRs vs. Smt. Ch the attesting witness examined besides his attestation does not, in his evidence, satisfy the requirement of attestation of the w other witness also, it falls short of attestation of will at least by two witnesses for the simple reason that the execution of the will does not merely mean the signing of it by the testator but i fulfilling and proof of all the formalities required under Section 63 of the Succession Act. It is also pertinent to note that where one attesting witness fails to prove the due execution of Will then presence of the other available attesting witness mandatory to supplement the evidence otherwise, there will be deficiency in meeting the mandatory requirement of Section 68 of the Evidence Act.

35. The main contention of Ld. Counsel for the defendants no. 2 & 3 is that they were not required to prove the execution of Will as copy of the same was placed on record by Smt. Chanan Devi, witness to Will before Hon'ble High Court of Delhi and therefore the said will is admitted document. In this regard, it is necessary to perus testimony of PW1. PW1 during his cross examination dated 26.10.2009 has admitted that the matter i.e SA0 rent number 116/1974 was pending before the Hon'ble High Court of Delhi. He stated that his mother has not given any statement in the court. Upon showing his signatures at point A on the certified copy of Will dated 25.04.1975, Ex-PW1/D1 (also Ex-PW1/5), the witness denied his signatures. He further denied the suggestion that defendant nos.1 to 3

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36. The aforesaid testimony of PW1 would show that PW1 denied the

existence of the Will and even denied his own signature at point A on the Will dated 25.04.1975, Ex-PW1/D1(also Ex.DW1/5). Perusal of Ex-PW1/D1 (also Ex.DW1/5) would show that besides Smt. Chanan Devi, one of the attesting witness to a Will; Sh. Bihari Lal; Sh. Balwinder Singh; Sh. Tilak Raj Madan and Sh. Baldev Raj Madan (PW-1) are witnesses to Will dated 25.04.1975, Ex.PW-1/D1(also Ex.DW1/5). The original plaintiff(PW-1) has denied his own signatures at point A on Will dated 25.04.1975, Ex.PW1/D1 (also Ex.DW1/5) and he even denied the execution of

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37. Further, there is force in the contention of Ld. Counsel for plaintiff that the plaintiff was not having any opportunity to cross examine Smt. Chanan Devi, whose statement was recorded in the aforesaid SAO No. 116/1974. As per Section 33 of Indian Evidence Act, evidence given by witness in a judicial proceedings is relevant for the purpose of proving in a subsequent judicial proceedings, or in

Civ DJ No.608161/16 Sh. Baldev Raj Madan through LRs vs. Smt. Chanan Devi through LRs vs. Sh. Des Raj Madan. None of the witnesses to the Will dated 25.04.1975, Ex PW-1/D1 (also Ex.DW1/5) were examined in the instant case. Once, Sh. Baldev Raj Madan, one of the attesting witness to a Will dated 25.04.1975, Ex.PW1/D1 (also Ex.DW1/5) denied its execution and keeping in view that no original Will has been filed on record, it was for the defendants no. 2 to 3 to examine at least one witness in the instant case to prove the valid execution of Will. It is not the case of the defendants that there was only one attesting witness, Smt. Chanan Devi who had died and no other attesting witness was alive at the time of recording of evidence in the present case. The contesting defendants could examine any other attesting witness to the Will dated 25.04.1975, Ex-PW1/D1, more so, when original plaintiff(PW-1), one of the attesting witness denied the execution of Ex.DW1/5. Even assuming that the other witnesses to Will dated 25.04.1975, Ex.PW1/D1 (also Ex.DW1/5) were not alive, the contesting defendants were required to prove the Will as per Section 69 of Indian Evidence Act, 1872.

38. Adverting to the facts of the present case, Smt. Chanan Devi was

examined in rent appeal case before Hon'ble High Court of Delhi, where the plaintiff was not a party and thus having no opportunity to cross examine the witness, Smt. Chanan Devi. The contention of Ld. Counsel for the defendants no. 2 and 3 that Section 32 of the Indian Evidence Act, 1872 is applicable as Smt. Chanan Devi had given statement and not led any evidence during trial before the Hon'ble High Court of Delhi is not legally sustainable. In this regard, Ld. Counsel for the plaintiff has drawn attention of this court to Section 3 of the Indian Evidence Act, where the term "evidence" has been interpreted as: -

"3 Interpretation clause. --In this Act the following words and expressions are used in the following senses, unless a contrary intention appears from the context:-- .
" Evidence" means and includes--

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(1) all statements which the Court permits or requires to be made before it by witnesses, in relation to matters of fact under inquiry, such statements are called oral evidence;

(2)all documents including electronic records produced for the inspection of the Court], such documents are called documentary evidence."

39. The aforesaid definition of term evidence includes the statement made in relation to matters of fact under inquiry and the statement given by Smt Chanan Devi to ascertain the LRs of Late Des Raj before the Hon'ble High Court of Delhi would fall within the ambit of section 33 of Indian Evidence Act, 1872. Admittedly, the plaintiff was not party to the SAO No. 116/1974 filed before the Hon'ble High Court of Delhi. Therefore, the testimony of Smt Chanan Devi was not tested on the touchstone of cross examination by the plaintiff.

40. It is worthwhile noting that statement of Ms. Chanan Devi in SAO No. 116/1974 was only for the purpose of impleading LRs and not given in any probate case. The finding, if any, with respect to the LRs of Late Sh. Des Raj Madan is binding inter se between parties in the said SAO No. 116/1974.

41. It is also not out of place to mention herein that Ms. Chanan Devi has filed copy of Will, Ex-PW1/D1 before the Hon'ble High Court of Delhi in SAO No. 116/1974 and even before this court. The

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contesting defendants have not given details of the person having possession of the original Will. Notwithstanding that where t documents cannot be proved by primary evidence, secondary evidence to prove the same is permissible under the Indian Evidence Act. The Hon'ble Apex Court in the judgment reported as 1975(4)

SCC 664, Ashok Dulichand v. Madahavlal Dube and Another observed that in order to enable the party to produce secondary evidence, it is necessary for the party to prove the existence and execution of the original document. It is also held that the conditions laid down in Section 65 must be fulfilled before secondary evidence can be admitted. Secondary evidence of the contents of the document cannot be admitted without non production of the original being first accounted for in such a manner as to bring it within one or the other condition provided in the section. The photostat copy of the document which is accurate reflection of original document is accepted as secondary evidence but it has to be shown that Photostat copy is authentic and appropriate photocopy is original. Photocopy of document is secondary evidence by virtue of Section 63(2) of Indian Evidence Act. But, the party must show any of the circumstances mentioned in Section 65 of the Act warranting leading of secondary evidence. In the instant case, no foundation has been laid by the plaintiff for leading secondary evidence in the shape of Photostat copy. Defendants no. 2 & 3 have failed to establish that the original document was not in their possession and also fail to explain as to what was the circumstances under which the Photostat

Civ DJ No.608161/16 Sh. Baldev Raj Madan through LRs vs. Smt. Ch copy was prepared and who was in possession of the original Will at the time its photograph was taken. In this regard, reference is also made to the judgment of Hon'ble Apex court reported as Smt. J. Yashoda Vs. Smt.Shobha Rani 2007(2) RCR Civil 840 wherein Hon'ble Apex Court while dealing with issue of admissibility photocopy of the Photostat documents, original thereof was in possession of the third party reached to the conclusion that conditions mentioned in 65 of the Act were not fulfilled therefore, Photostat copy could not be allowed to be produced as secondary evidence.

42. Ld. Counsel for the defendants no. 2 & 3 contended that Hon'ble High Court of Delhi considered the photocopy of registered Will admissible in evidence in RFA No. 42/2008 titled as Harminder Khullar Vs. Swaran Kanta Juneja & Ors decided on 18.07.2013. The ratio of aforesaid judgment is not applicable to the facts of instant case as the existence of Will was found to have been admitted in the said case, which is not so in the instant case as the plaintiff has not admitted the execution of Will.
43. The next contention of Ld. Counsel for the plaintiff is that Smt. Raj Rani was not married to Smt. Des Raj Madan and was not even second wife of Sh. Des Raj Madan. He submitted that the alleged marriage of late Sh. Des Raj Madan with Smt. Raj Rani has not been proved on record. He further submitted that the onus was upon the

Civ DJ No.608161/16 Sh. Baldev Raj Madan through LRs vs. Smt. Ch defendants' no. 2 & 3 to prove that defendant no. 2 was married to Late Sh. Desh Raj Madan and defendant no. 3 is born out of the said wedlock. He submitted that as per Section 16 of Hindu Marriage

Act, 1955, the daughter of void marriage is entitled to share in the property of her parents but in order to claim right in the property of the parents, the marriage between parties is required to be proved and only thereafter, it can be held that the said marriage was void marriage as solemnized during the existence of first marriage of Sh. Des Raj Madan with Smt. Champawati. It is his contention that Smt Raj Rani has not stepped into the witness box to prove her marriage with late Sh. Des Raj Madan. He thus submitted that in the absence of proof of marriage, defendant no. 3 is not entitled to even inherit the property of her father, late Sh. Des Raj Madan. He has placed reliance on following judgments as:-

- a) Sachin & ors. vs. Krishna Kumar Nangia & ors ILR (2013) IV Delhi 3204.
- b) Vidyadhar vs. Manikrao & anr. AIR 1999 SC 1441.
- c) Shah Gummanmal vs. State of Andhra Pradesh, 1980 AIR 793.

44. In this regard, suffice is to state that late Sh. Baldev Raj, original defendant during his cross examination dated 26.10.2009 has admitted that Lovleen, defendant no.3 is daughter of late Sh. Des Raj from second wife. Once the original plaintiff has himself admitted that Ms. Lovleen is daughter of late Sh. Des Raj from second wife, it is manifest that the original plaintiff himself has admitted

Civ DJ No.608161/16 Sh. Baldev Raj Madan through LRs vs. Smt. Ch marriage of Smt. Raj Rani with late Sh. Des Raj Madan. It is settled law that when oral and other reliable evidences are satisfying evidence that the pair lived together as husband and merely because family record does not show them as husband and wife is not a clinching evidence to deny the relationship of husband and wife. It is also pertinent to note that the defendant no. 4 and the defendant no.6 have supported the case of the constesting defendants.

45. The next contention of Ld. Counsel for the plaintiff is that Ms. Loveleen is not entitled to any share in the property left behind by late Sh. Des Raj Madan as late Sh. Des Raj Madan had died before the amendment of Section 16 of Hindu Marriage Act, 1955. He thus submitted that the notional partition opened before the amendment of Section 16 of Hindu Marriage Act and therefore, Ms. Loveleen, defendant no. 3 is not entitled to any share in the suit properties left behind by Late Sh. Des Raj Madan prior to the amendment Section 16 of Hindu Marriage on 27.05.1976. Ld. Counsel for the plaintiff has placed reliance on following judgments as:-

- a) Anar Devi & ors vs. Parmeshwari Devi, 2006 AIR 3332.
- b) Prakash & ors. vs. Phulavati & ors., 2016 AIR 769.

46. The ratio of aforesaid judgments cited by ld. counsel for the plaintiff is not applicable to the facts of the instant case. In this regard, one may refer to the judgment of Hon'ble High Court of Kerala reported

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as AIR 2006 Ker 26, Naraini Vs. Aravindakshan, wherein the
Hon'ble High Court of Kerala observed as: -

"51. Contextually relevant is an interesting case, Rasala Surya Prakasarao and Ors. v. Rasala Venkateswarao and Ors., decided by a Division Bench of the Andhra Pradesh High Court, reported as Air 1992 Andh Pra 234. There, a question arose as to whether the illegitimate children of one Ramaiah, who died in 1975 in an undivided status, were entitled to claim share. The Bench posed the question as to whether the benefit of Section 16 of the Act as amended in 1976, would entitle the illegitimate children to claim partition of the properties of their father, who died in 1975. After surveying a catena of decisions, the Division Bench upheld the claim of the illegitimate children. In doing so, their Lordships noticed the decision of the Andhra Pradesh High Court in Lakshamma v. Narasamma, 1978 (2) Andh. LT 205, wherein the Court was concerned with the estate of one Narasappa who died in 1966. The Division Bench quoted with approval the said decision as follows: -

"A reading of Sub-section (1) in my opinion, does not leave any doubt that the Parliament intended to benefit all the children before or after the commencement of the Amendment Act and those born before or after the decree of nullity, by declaring them as 'legitimate'. Sub-section (3) also provides clue to the intention of the Parliament that such declaration of legitimacy was not intended to be an empty one but was supposed to be integrally connected with the devolution of properties also. The section says that the children born of void marriages shall be deemed to be legitimate as if the marriage had been valid, notwithstanding the fact that the marriage is declared to be a nullity whether before or after the birth of the child, and

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notwithstanding the further fact that the child
born before or after the amendment. As a result of
the said section, the plaintiff must be deemed to be
the legitimate child of Narasappa. If she is
legitimate child, she would be undoubtedly entitled
to a share in the properties of Narasappa. Accepting
the respondent's contention would mean that the

plaintiff would be deemed to be a legitimate child of
Narasappa only from the date of coming into force
of the Amendment Act, she would be the legitimate

daughter of Narasappa, but shall have no share in his properties. Such could not have been the intention of the Parliament. If she is legitimate, she is legitimate from her birth. In other words, she is a legitimate child of Narasappa for all purposes. If so, she is entitled to a share in his properties according to law."

52. In the decision of Goverdhan Singh v. Hiranman Singh, 1980 (2) Andh. LT 210, the amendment of Section 16 by Section 11 of the Amending Act was understood as follows: "This amendment was made to remove certain anomalies and handicaps that had come to light after the passing of the Hindu Marriage Act, 1955. By the amendment the sweep of Section 16 has been widened and even where the marriage is null and void and under Section 11 any child of such marriage shall be legitimate whether or not a decree of nullity is granted in respect of that marriage under the Act and whether or not the marriage has been found void otherwise than on a petition under the Act. Thus the Section declares the legitimacy of a child even when the marriage between the parents is held to be void otherwise than on a petition under the Act. The limitation or doubts placed on the applicability of the benefit by the old section have been removed. It is well settled that a marriage which is null and void ipso jure and is declared to be void by the Court or annulled by the Court on the grounds of its voidability will have the inevitable effect of bastardising any child born to such parties. The effect of a decree of a nullity in the case of a void marriage or annulment of voidable marriage is to render the marriage null and void from its inception for all intents and purposes. The Legislature enacted the section to see that in no case the children of persons whose marriage is solemnized but is void or voidable under Section 11 or 12 of the Act will be regarded as illegitimate children.

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55.....

56. On the basis of the aforesaid discussions, the following conclusions are reached:

(i) The substitution of Section 16 of the Hindu Marriage Act, 1955 by Section 11 of the Marriage Laws (Amendment) Act, 1976 is a substitution relating back to the date of the parent Act.

(ii) The status of legitimacy, that is declared by Section 16, is part of the incidence of birth.

(iii) The right of a child, on the basis of such deemed legitimacy, to share in the properties of the parent, is not nipped by the death of the parent before the notification of the Amending Act.

(iv) The deemed status of legitimacy entitles such a child to demand partition of the property of the parent who died before the notification of the Amending Act, in spite of succession having opened out earlier. The other sharers have no such indefeasible right that has not been affected by section 16 of the Act as substituted by section 11 of the Amending Act.

(iv) The deemed status of legitimacy entitles such a child to demand partition of the property of the parent who died before the notification of the Amending Act, in spite of succession having opened out earlier. The other sharers have no such indefeasible right that has not been affected by Section 16 of the Act as substituted by Section 11 of the Amending Act.

(v) Such partition has to be as on the date of the estate becoming available for partition by the death of the parent."

47. The ratio of aforesaid judgment is that deemed status of legitimacy entitles such a child to demand partition of the property of the parent who died before the notification of the Amending Act, in spite of succession having opened out earlier. In view thereof, the defendant no.3 is entitled to inherit the suit properties left behind by her late father, Sh. Des Raj Madan.

48. It is admitted case of the parties that late Sh. Des Raj Madan was survived by his mother and his two wives and daughter, Ms. Loveleen, therefore, Smt. Chanan Devi mother of Late Sh. Des Raj Madan; Smt. Champawati, wife of late Sh. Des Raj Madan and Ms. Loveleen, daughter of late Sh. Des Raj Madan became entitled to 1/3rd share each in the suit properties upon death of Sh. Des Raj Madan.

49. The next point for consideration is as to who is entitled to 1/3rd share of late Smt. Chanan Devi, in the suit properties left behind by her predeceased son, Sh. Des Raj Madan. In this regard, one may refer to Section 15(1) of the Hindu Succession Act, 1956 which stipulates general rule of succession in case of female Hindu. Section 15 (1) of the Hindu Succession Act, 1956 is reproduced as : □

"(1) The property of a female Hindu dying intestate shall devolve according to the rules set out in section 16,--

(a) firstly, upon the sons and daughters (including the children of any predeceased son or daughter) and the husband;

(b) secondly, upon the heirs of the husband;

(c) thirdly, upon the mother and father;

(d) fourthly, upon the heirs of the father; and

(e) lastly, upon the heirs of the mother."

50. It is also contention of ld. counsel for the plaintiff that Ms. Lovleen would not be entitled to any share in the estate of Smt. Chanan Devi as per Section 16 (3) of the Hindu Marriage Act, 1955. Section 16 of Hindu Marriage Act, 1955 is reproduced hereunder as: □

" 16 Legitimacy of children of void and voidable marriages.

(1) Notwithstanding that marriage is null and void under section 11, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before or after the commencement of the Marriage Laws (Amendment) Act, 1976 (68 of 1976)*, and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable marriage under section 12, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been dissolved instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

(3) Nothing contained in sub-section (1) or sub-section (2) shall be construed as conferring upon any child of a marriage which is null and void or which is annulled by a decree of nullity under section 12, any rights in or to the property of any person, other than the parents, in any case where, but for the passing of this Act, such child would have been incapable of possessing or acquiring any such rights by reason of his not being the legitimate child of his parents."

51. Section 16(3) of Hindu Marriage Act, 1955 mandates that child of void marriage shall not have any right in property of any person other than the parents. Admittedly, late Sh. Des Raj Madan was having 1/2 share in House no. 1102□4, Gali No. 12□3, Naiwala, Karol Bagh, New Delhi□5 (suit property no.1) and was having complete ownership in property bearing no. 149, Desh Bandhu Gupta Market, Karol Bagh, New Delhi (suit property no.2). This court has already held hereinabove that Smt. Chanan Devi, mother of late Sh. Des Raj Madan; Ms. Champa Wati, wife of late Sh. Des Raj Madan and Ms. Lovleen, daughter of late Sh. Des Raj Madan are entitled to 1/3rd share each in the estate left behind by late Sh. Des Raj Madan. Meaning thereby, Smt. Chanan Devi is having 1/3rd share in the suit properties. It is already held that Smt. Chanan Devi is survived by the plaintiff and the defendant nos. 3 to 6 as Class□ legal heirs. However, this court is of considered opinion that the defendant no.3 would not be entitled to the estate of Smt. Chanan Devi as per mandate of Section 16 (3) of Hindu Marriage Act, 1955. Therefore, it is held that the plaintiff and the defendant nos. 4 to 6 are entitled to 1/4th share each in the aforesaid estate left behind by Smt. Chanan Devi.

52. It is hereby clarified that the LRs of the deceased plaintiff shall be entitled equally to the share of the deceased plaintiff and similarly, LRs of the deceased defendant no.4 and Lrs of the deceased defendant no.6 shall be entitled equally to the share of the deceased defendant nos.4 & 6 respectively.

53. It is the contention of ld. counsel for the plaintiff that share of Smt. Champa Wati in the estate of late Sh. Des Raj Madan be also distributed as late Smt. Champa Wati had died intestate.

54. In response to the same, ld. counsel for the defendant nos. 2 & 3 submitted that share of Smt. Champa Wati is not a matter of adjudication in this suit. It is the contention of ld. Counsel for the contesting defendants that the plaintiff has not amended the plaint on the death of Smt. Champa Wati and therefore, the share of the Smt. Champa Wati cannot be adjudicated upon in the instant suit. Plaintiff in this regard has relied upon the judgment of Hon'ble Apex Court reported as 2008(17) SCC 491, titled as Bachajee Nahar vs. Neelima

Mandal & ors that in the absence of pleadings as well as issues qua partition of estate of Smt. Champa Wati, the court should confine its decision to the question raised in the pleadings. It is also argued that the court cannot grant a relief which is not claimed and which does not flow from the plaint and cause of action alleged in the plaint. In response to the same, ld. counsel for the plaintiff submitted that specific issue no.1 has been framed in this regard.

55. Having decided issue no1 against the defendants, the next question which arise for consideration is that whether the share of Smt. Champa Wati in the estate of the Des Raj can be divided in the instant suit.

56. It is pertinent to note herein that Smt. Champa Wati had died during the pendency of the present suit and inherited 1/3 rd share in the estate of Sh. Des Raj Madan.

57. Perusal of record shows that Smt. Champa Wati was deleted from the array of the parties vide order dated 01.02.2007 and said order was passed on the application under Order 22 Rule 2 CPC filed by the plaintiff. Vide application under Order 22 Rule 2 CPC, the plaintiff has sought for deletion of the name of Smt. Champa Wati from the array of defendants on the ground that right to sue survive against the surviving defendants and LRs of Smt. Champa Wati are already on record. Ld. Predecessor of this court accordingly deleted Smt. Champa Wati from the array of defendants, however, no issue was framed with regard to the entitlement of the Lrs to the share of Smt. Champa Wati in the estate of Sh. Des Raj Madan. The issues of partition and possession pertains to the prayer made in para 18 of the plaint which deals with the estate of late Des Raj Madan and not with the estate of Smt. ChampaWati. Be that as it may, suffice is to state that the estate of Sh. Des Raj to be partitioned and falling in the share of Ms. Champawati cannot be left to be decided in subsequent suit, more so, when her legal heirs are already on record.

58. Further, it cannot be overlooked that the parties to the present suit were aware that issue of partition of suit properties belonging to Sh. Des Raj Madan is a matter of adjudication in the instant suit, and therefore, the part of the estate of Sh. Des Raj Madan falling to the

share of Smt Champa Wati, who died during the pendency of present suit, would consequently be partitioned when her legal heirs are already on record. Eventually, the defendant nos. 2 & 3 themselves set up a Will of Smt Champawati in the written statement to claim her share in the suit properties, however, same was taken off the record due to nonpayment of cost. This is not a case where parties are taken by surprise and the reason for stating the same is that the ld. Counsel for the plaintiff himself has argued that share of Sh. Des Raj falling to the estate of Smt. Champa Wati be also partitioned as her LRs are already on record. It is hereby clarified that this court is not dealing with the estate of Smt. Champa Wati which is her exclusive estate as pleaded by the parties to the suit; however, this court cannot shut its eye with respect to the estate of Sh. Des Raj inherited by Smt. Champa Wati in the instant suit.

59. Therefore, the question which now needs attention is as to who would be entitled to 1/3rd estate of Smt. Champa Wati which she inherited from Late Sh. Des Raj. In this regard, one may refer to Section 15(1) of Hindu Succession Act, 1956 which has already been reproduced hereinabove and Section 15 (2) (b) which is reproduced as under : □"a).....

b) any property inherited by female Hindu from her husband or from her father□n□ law shall devolve, in the absence of any son or daughter of the deceased (including the children of any pre□deceased son or daughter) not upon the other heirs referred to in sub□ section (1) in the order specified therein, but upon the heirs of the husband."

60. It is therefore ample clear that the aforesaid 1/3rd estate of Smt. Champa Wati shall devolve upon the heirs of her husband. In the instant case, Class□ I heir of her husband, late Sh. Des Raj Madan is his daughter, Ms. Lovleen, defendant no. 3 and therefore, 1/3rd share of Smt. Champa Wati in the estate of Late Sh. Des Raj Madan would be inherited by Ms. Lovleen, defendant no. 3. In this regard, one may also refer to the judgment of Hon'ble Apex Court being Special Leave Petition (C) No.12639/09, Revana Sidappa & ors. vs. Malika Arjun & ors, decided on 31.03.2011 where the Hon'ble Apex Court has gone a step ahead while dealing with the question that whether illegitimate children are entitled to the share in the co□parcenary property or whether their share is limited only to the self acquired property of their parents under Section 16 (3) of Hindu Marriage Act. The Hon'ble Apex Court after considering catena of decision observed that Section 16(3) as amended, does not impose any restriction on the property right of such children except limiting it to

the property of their parents. Therefore, such children will have a right to whatever becomes the property of their parents whether self acquired or ancestral and Hon'ble Apex Court referred the matter to the larger Bench.

61. In view thereof, Ms. Lovleen is entitled to the share of Smt. Champa Wati in the estate of Late Sh. Des Raj. Insofar as issue of possession is concerned, the same would be considered at the time of passing of final decree and cannot be considered at the stage of passing preliminary decree. It is held accordingly.

Relief

62. In view of the above, Late Smt Chanan Devi, Late Smt Champawati and Ms Lovleen are entitled to 1/3rd share each in the suit properties of late Sh. Des Raj Madan i.e. suit property no. 1 (1/2 share in house no. 1102□4, Gali No. 12□3, Naiwala, Karol Bagh, New Delhi□5) and suit property no. 2 (property bearing no. 149, Desh Bandhu Gupta Market, Karol Bagh, New Delhi).

63. The LRs of the deceased plaintiff; Lrs of the deceased defendant no. 4 ; defendant no. 5 and Lrs of the deceased defendant no. 6 are entitled to 1/4th share each in the estate of late Smt Chanan Devi, who has inherited 1/3rd share in the estate of late Sh. Des Raj Madan. The defendant no. 3, Ms Lovleen, besides her 1/3 rd share in the suit properties of Late Sh. Des Raj Madan would also be entitled to 1/3 rd share of Smt. Champawati. Preliminary decree sheet be drawn accordingly.

Announced in the open court on (Manjusha Wadhwa)
this 17th February, 2018. Addl. District Judge□64 (West)
Tis Hazari Courts, Delhi